

STATE OF NEW YORK

11068--A

IN ASSEMBLY

April 24, 2026

Introduced by M. of A. WALSH -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing Kurt Nolan to receive certain credit under sections 384-d and 384-e of the retirement and social security law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law, Kurt Nolan,
2 currently a part-time police officer with the village of Ballston Spa
3 police department and member of the New York state and local police and
4 fire retirement system covered by section 384-d of the retirement and
5 social security law, who from October, 2010 through March, 2016 was
6 employed as a university police inspector with the New York state
7 university police, and who from March, 2016 through May, 2021 was
8 employed as a university police officer with the New York state univer-
9 sity police, for reasons not ascribable to his own negligence, was not
10 granted service credit under sections 384-d and 384-e of the retirement
11 and social security law for his periods of employment with the New York
12 state university police, shall be granted such service credit under
13 sections 384-d and 384-e of the retirement and social security law and
14 shall be entitled to the full rights and benefits associated with cover-
15 age under such sections, provided a request to that effect is filed with
16 the state comptroller within one year from the effective date of this
17 act.

18 § 2. All past service costs incurred in implementing the provisions of
19 this act shall be borne by the state of New York.

20 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would grant service credit in sections 384-d and 384-e of the retirement and social security law (RSSL) to Kurt Nolan, a Tier 5 member of the New York State and Local Police and Fire Retirement System (NYSLPFRS) currently employed by the village of Ballston Spa. Credit would be granted for the period of October 2010 through May 2021 while

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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the member was employed as a university police inspector and a university police officer, covered under Article 15 and section 383-d, respectively.

This bill will not increase the village of Ballston Spa's annual contributions.

Insofar as this bill affects NYSLPFRS, there will be an immediate past service cost of \$200,000 borne by the state of New York as a one-time payment. This cost assumes that payment will be made on March 1, 2027.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated May 29, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-234. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.